

fully contested the previous Lok Sabha elections from Maharashtra with Congress support.

The governor's decision has kicked up a legal debate as well regarding its constitutional propriety. Legal luminaries like former Supreme Court judge V.R. Krishna Iyer question the governor's decision to overlook the Cabinet's position. "It's unconstitutional to reject the Cabinet's decision. To overlook it and rely on the police chief would only bring in police raj," he says. But sources in Raj Bhavan cite the 2004 Supreme Court verdict which upheld the Madhya Pradesh governor's decision to accord permission to prosecute two state ministers in a corruption case rejecting the state Cabinet's advice. "The CPI(M)'s attempt to attack the Governor is an affront to the constitutional body. The governor has only discharged his constitutional duty," says Oommen Chandy, former Kerala chief minister. The BJP too has condemned the CPI(M)'s "assault on the constitutional office of the governor".

The biggest challenge the CPI(M) faces in shielding its secretary, however, is not from outside but from within. From the beginning of the case, Chief Minister V.S. Achuthanandan has departed from his party's line and wants Vijayan, his bitter rival inside the party, to pay for it. Achuthanandan has consistently asked the Politburo not to view Vijayan's implication as politically motivated and wants him removed as the state secretary until he is proved innocent. However, the state leadership as well as the Politburo has been rejecting his demands repeatedly. The Vijayan camp in the CPI(M) has even requested the Politburo to initiate disciplinary action against Achuthanandan for "violating the Leninist organisational principle to obey the majority decision".

Achuthanandan had warned the Politburo that the party would pay a heavy price in the general elections if Vijayan was not replaced. The CPI(M)'s

Power TRIP

Fourteen years after the hydropower contract was signed, the trail heats up

1995: United Democratic Front government headed by A.K. Antony signs consultancy contract with Canada's SNC Lavalin Inc. for renovation and maintenance of three hydropower projects.

1996: LDF Government headed by E.K. Nayanar signs supply contract worth Rs 374.50 crore with Lavalin.

1997: Lavalin offers to arrange a grant of Rs 105 crore from Canadian agencies to set up a cancer hospital in gratitude for the contract.

2003: Following complaints against awarding the contract, UDF Government institutes a vigilance department inquiry.

2006: CAG finds serious lapses in the award of over-priced contract, causing huge losses to the state. Vigilance finds lapses with state electricity board officials. Exonerates former power minister Pinarayi Vijayan. UDF Government decides to hand over probe to CBI, which refuses.

2007: CBI takes over probe following High Court order.

Jan 2009: CBI files report in High Court finding irregularities in the contract. Seeks Governor's sanction to prosecute Vijayan and 11 others.

May 2009: Based on the advocate general's report, state Government advises Governor against Vijayan's prosecution.

June 2009: Governor sanctions prosecution.

and LDF's drubbing in the last Lok Sabha elections has vindicated Achuthanandan even as the CPI(M) state committee blames him for the electoral rout. At the same time, there have been vociferous demands in the 85-member committee, calling for Achuthanandan's removal as chief minister.

The governor's decision has once again charged Achuthanandan's batteries. Unlike the rest of the party leaders, he has conspicuously refused to criticise Gavai's decision. Taking on the rival camp, he says that Vijayan's implication is not a closed chapter and that the Politburo will discuss it again on June 18 when it meets. This has further alienated the chief minister from the CPI(M)'s official camp which is standing solidly behind Vijayan. LDF convener Viswan has issued a veiled warning to Achuthanandan, saying, "No party leader or member will allow our secretary to be made a political victim."

Thanks to his organisational prowess combined with muscle and money power, Vijayan has established his hegemony in the CPI(M) since the state committee meeting in 2005, reducing the Achuthanandan camp to a minority in the party. But the chief minister is fighting tooth and nail in his persistent war against Vijayan, often ignoring organisational discipline and Central leadership diktats. As a stern disciplinary move, the CPI(M) had suspended both Vijayan and Achuthanandan from the Politburo in 2007 for washing their dirty linen in public.

Though the majority of the state leadership has been baying for his blood, Achuthanandan has often found support from the Politburo. In 2006, the Politburo had overruled the state committee's decision not to give him a ticket to contest the assembly elections. The Politburo's efforts to protect the chief minister against his own comrades is driven by the belief that no one else in the party can match his public popularity. If the CPI(M) wants to have a shot at the assembly polls, it knows it needs the wily comrade's charisma. ■